

Court No. - 37

Case :- WRIT - C No. - 5648 of 2020

Petitioner :- M/S Pratibha Industry

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Abhishek

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Abhinava Upadhyay, J.

Hon'ble Shamim Ahmed, J.

Heard Sri Abhishek for the petitioner and Sri Mahboob Ahmad for the Electricity Department.

Petitioner is a consumer of electricity and is disputing the electricity bills and has challenged the recovery citation issued against him.

The petitioner had initially obtained a domestic electricity connection and thereafter established a Rice Mill and converted his domestic electricity connection into commercial connection. According to the petitioner, the Rice Mill has been closed on 18.06.2016. Thereafter, various fluctuating demands have been sent to the petitioner and ultimately recovery citation dated 23.06.2020 has been issued to the petitioner. Hence this writ petition.

Sri Mahboob Ahmad, learned counsel appearing for the Electricity Department submits that that the petitioner has disputed the bills, for which the appropriate authority to consider his grievance is the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005.

In our considered opinion, no fruitful purpose would be served by keeping this writ petition pending, as a direction is being issued to the Executive Engineer (respondent no. 3) that in case the petitioner files his objection within a week from today along with certified copy of this order, he shall, in exercise of power under clause 6.5 of the Electricity Supply Code, 2005, consider the objection of the petitioner and pass an appropriate order in accordance with law within one month thereafter.

The recovery pursuant to the citation dated 23.06.2020 (Annexure-1 to the writ petition) shall be kept in abeyance and shall be subject to the final decision taken by the Executive Engineer, as directed above.

With the aforesaid observation/direction, the present writ petition is disposed of.

Order Date :- 17.2.2020

Pkb/

(Shamim Ahmed, J.) (Abhinava Upadhyay, J.)